

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

DIANE C. DESOUSA and
DIANE C. DESOUSA AS EXECUTOR OF
THE ESTATE OF THOMAS E. DESOUSA,
Plaintiffs,

-against-

RICHARD A. CALVAGNO II and PATRICK J.
KARCHER,
Defendants.

Index No. 600371/2021

**REPLY AFFIRMATION IN
FURTHER SUPPORT OF
PLAINTIFFS' MOTION FOR
SUMMARY JUDGMENT**

Motion Seq. No 7

John N. Cuomo, an attorney duly licensed to practice law in the State of New York, affirms under penalties of perjury as follows:

1. I represent Plaintiffs Diane C. DeSousa ("Mrs. DeSousa") and Diane C. DeSousa as Executor of the Estate of Thomas E. DeSousa (collectively "Plaintiffs") in the above-captioned action. I am fully familiar with the facts and circumstances of this case and submit this Reply Affirmation in support of Plaintiffs' motion for an Order: (1) dismissing defendant Richard A. Calvagno II's ("Calvagno") First through Fifth Counterclaims and awarding attorney's fees as a sanction for committing fraud upon the Court; or alternatively, (2) granting summary judgment pursuant to CPLR §3212(b) dismissing all Counterclaims in their entirety; and (3) such other and further relief as this Court deems just and proper.
2. This motion was originally made in 2024 and denied without prejudice following the passing of Plaintiff Thomas E. DeSousa and the resulting stay ([NYSCEF#117](#)). Upon the appointment of Mrs. DeSousa as Executor and the lifting of the stay, this motion is timely renewed. The

renewed motion is supported by all prior motion papers and the additional evidence and argument set forth herein.

3. Calvagno's opposition papers fail to raise a single triable issue of fact. Riddled with conclusory statements and unnecessary recitations of case law, they provide no admissible evidence to defeat summary judgment. *See Zuckerman v. City of New York*, 49 N.Y.2d 557 (1980). His opposition is predicated on allegations of homophobia that are wholly inconsistent with the evidence, and on sworn statements that are materially inconsistent with his own prior deposition testimony—conduct that reinforces, rather than cures, the grounds for the sanctions and dismissal Plaintiffs seek.

**PRELIMINARY STATEMENT: DEFENDANT'S OPPOSITION PAPERS WERE
SERVED LATE AND SHOULD BE DISREGARDED**

As a threshold matter, Defendant's opposition papers should be disregarded in their entirety as untimely served. Plaintiffs' Notice of Motion expressly provided, pursuant to CPLR §2214(b), that answering papers were required to be served at least seven (7) days before the return date of this motion. This motion is returnable on May 5, 2026, making April 28, 2026 the last permissible date for service of opposition papers. Defendant served his opposition papers at 1 p.m. on April 29, 2026, one day late and in direct violation of the express notice contained in Plaintiffs' motion papers and the requirements of CPLR §2214(b). This Court has the inherent discretion to, and should, decline to consider untimely opposition papers. *See generally, U.S. Bank N.A. v Carlin*, 186 A.D.3d 1563 (2d Dep't 2020) (court may reject late opposition papers). Should this Court nonetheless consider the opposition in the exercise of its discretion, Defendant's papers are entirely without merit for the reasons set forth below.

ARGUMENT**CALVAGNO'S AFFIDAVIT CONCLUSIVELY ESTABLISHES HE COMMITTED A FRAUD UPON THIS COURT WARRANTING DISMISSAL AND ENTRY OF JUDGMENT IN PLAINTIFFS' FAVOR**

4. “[W]hen a party lies to the court and [its] adversary intentionally, repeatedly, and about issues central to the truth-finding process, it can fairly be said that [the party] has forfeited [the] right to have [the] claim decided on the merits.” *CDR Créances S.A.S. v. Cohen*, 23 N.Y.3d 307, 321 (2014). Once clear and convincing evidence establishes fraud on the court, the court may strike a pleading and enter default judgment. *Id.*
5. Calvagno verified his Counterclaims under oath on January 26, 2021—just nineteen days after the Complaint was filed—attesting to the existence of facts that, by his own subsequent testimony, had not yet occurred. Those Counterclaims alleged Plaintiffs were “morally offended” by his homosexuality, had slandered him with slurs including “faggot” and “homo,” followed him to his workplace, threatened his employment, and harassed him outside his home. It is simply not possible that all of this conduct accumulated in nineteen days. When deposed on August 1, 2023, Calvagno gave sworn testimony that was directly and materially inconsistent with his verified Counterclaims:
 - a. Q: Prior to the lawsuit or after the lawsuit?
 - b. Calvagno: Everything was after the lawsuit. Prior to me being served the papers we never had any negative interactions. Any questions were after this lawsuit.
([Calvagno Tr.](#) at 167.)
 - c. Q: The slurs that you claim Mr. DeSousa used with you in the street, sitting here today, you said it was two or three years ago?
 - d. Calvagno: Yes.

- e. Q: It would be 2020, 2021?
 - f. Calvagno: When did the lawsuit start? How about that?
 - g. Q: The lawsuit started in 2021.
 - h. Calvagno: After the lawsuit started. ([Calvagno Tr.](#) at 157.)
6. Calvagno was directly and repeatedly asked when the incidents occurred. His counsel did not object and Calvagno did not seek clarification. His answer was unambiguous. The pre-lawsuit police report Calvagno himself filed on November 4, 2020 contains no mention of slurs, discrimination, or homophobia—confirming none had occurred.
7. When confronted with these inconsistencies, Calvagno now claims he was “confused” about which “papers” commenced the action and believed it began when police visited his home. This explanation is inconsistent with the record. He cannot identify the date he received such papers, identify the “local officials” who provided them, or attach a single corroborating document. In fact, the earliest police report Mr. DeSousa filed was dated May 26, 2021—after the lawsuit ([NYSCEF#176](#)). The most likely source of the “papers” Calvagno claims he received is the process server who served him with Plaintiffs’ Complaint.
8. Most significantly, Calvagno’s personal affirmation is directly and materially inconsistent with his own sworn deposition testimony. At deposition he testified he could not recall the date of the alleged slur ([Calvagno Tr.](#) at 146) and that all incidents occurred after the lawsuit ([Calvagno Tr.](#) at 167). His affirmation now claims that the same incident occurred in “2020, before the 2021 commencement.” These statements cannot be reconciled. A party cannot defeat summary judgment by submitting an affidavit that contradicts prior sworn deposition testimony. *Harty v. Lenci*, 294 A.D.2d 296, 298 (2d Dep’t 2002).

9. Calvagno also now claims, for the first time, that his parents, live-in boyfriend, and neighbors witnessed Plaintiffs' slurs—directly contradicting his deposition testimony that there were no witnesses and no video of Mr. DeSousa ever using slurs ([Calvagno Tr.](#) at 153-154). He produces no affidavits from any of these purported witnesses. The video Calvagno submitted of an altercation between Mr. DeSousa and Calvagno's own parents is devastating to this claim: at no point do Calvagno's parents react to or reference any "hate-filled" statements. If such statements had been made routinely, his parents would have addressed them on video.
10. Defense counsel and Calvagno both affirmatively assert that Camarda's deposition testimony "confirmed" Mr. DeSousa's prejudicial slurs and his efforts to enlist neighbors against Calvagno (*see*, Calvagno Affirmation ¶11 fn.3; Barbara Affirmation ¶7 fn.3). This representation is a material misstatement of the record and must be corrected.
11. Camarda was noticed for deposition by Plaintiffs because Calvagno himself designated Camarda on his own witness list as a witness he intended to call (*see* Defendant's Witness List, annexed hereto as **Exhibit A** at page 4). Plaintiffs were therefore entitled and obligated to depose him. When deposed, however, Camarda testified that he had *no idea* why Calvagno named him as a witness ([NYSCEF#46](#) at 41-42), and that he had *no knowledge* of any purported slurs or interactions between Plaintiffs and Calvagno. That testimony is the precise opposite of what defense counsel and Calvagno now represent to this Court. Calvagno's own designated witness did not confirm the slurs—he affirmatively disclaimed any knowledge of them. Counsel's characterization of that testimony as corroboration is inconsistent with what the transcript reflects and should be disregarded accordingly.
12. Furthermore, Camarda has since pleaded guilty in the Eastern District of New York to participating in a \$160 million investment fraud, admitting under oath to serious and pervasive

dishonesty. Entirely independently of the substance of his testimony, his credibility as a corroborating witness is severely undermined. The testimony of a witness who has admitted, under oath in a federal criminal proceeding, to participating in a massive fraud cannot constitute the “admissible evidence” in admissible form required to defeat summary judgment. *Zuckerman*, 49 N.Y.2d at 562.

13. The pattern of inconsistency in Calvagno’s sworn statements is not inadvertent or isolated. His verified pleadings contained allegations that were, by his own subsequent testimony, inconsistent with the facts as they then existed. He provided new sworn statements during opposition that are materially inconsistent with his prior deposition testimony. He submitted a letter from Westbury Jeep certifying his vehicle had been inspected ([NYSCEF#44](#)), which was called into serious question when the Service Director testified he “did not know” if the car was ever inspected and there was no inspection record ([NYSCEF#45](#) at 13-17), and is now offering sworn affirmation testimony that cannot be reconciled with what he said under oath at his deposition. Taken together, this record presents the type of conduct that warrants striking Calvagno’s pleadings and entering judgment in Plaintiffs’ favor.

II. DEFENDANT’S PROCEDURAL OBJECTIONS ARE MERITLESS

A. Failure to Annex Pleadings

14. Calvagno argues Plaintiffs failed to annex the Counterclaims in violation of CPLR §3212(b). CPLR §2214(c) expressly provides that in an e-filed action, a party need not include copies of papers that were filed previously electronically with the court, but may make reference to them, giving the docket numbers on the e-filing system. Plaintiffs’ papers referenced all such pleading and included hyperlinks to each such document, in full compliance with this rule. In any event,

Calvagno suffered zero prejudice: he filed a detailed personal affirmation and a seventeen-page attorney affirmation addressing the substance of each counterclaim. Any technical omission must be disregarded where no substantial right is prejudiced. CPLR §3026; *and see, MacLeod v County of Nassau*, 75 A.D.3d 57, (2d Dep’t 2010).

B. Attorney Affirmation Lacking Personal Knowledge

15. Calvagno argues Plaintiffs’ attorney affirmation is “void of probative value” citing *Zuckerman v. City of New York*, 49 N.Y.2d 557 (1980). In *Zuckerman*, the Court rejected a “bare attorney affirmation” that contained only speculation, unsupported by any affidavit, eyewitness account, or deposition transcript. That is not this case. Here, Plaintiffs’ motion is supported by: the sworn affidavit of Mrs. DeSousa attesting from personal knowledge; Calvagno’s own deposition transcripts; police reports; photographs; videos; and emails, all admissible proof. An attorney’s affirmation properly organizes and presents evidence already in the record. *Olan v. Farrell Lines Inc.*, 64 N.Y.2d 1092 (1985).

C. Alleged Defect in Complaint ¶4

16. Calvagno again argues the Complaint is “fatally defective” because paragraph 4 allegedly misstates property ownership. This argument is irrelevant to this motion, which seeks dismissal of *Calvagno’s* counterclaims. The case he relies upon, *Bischof v. Gountas-Ortiz*, 59 Misc.3d 1225(A) (Sup. Ct. 2018), involved a plaintiff who lacked standing because a nonparty actually owned the subject property—a wholly different situation. Here, no one disputes Calvagno owns the premises at issue. Even if any technical error existed in the Complaint, it would be a non-prejudicial scrivener’s error freely correctable under CPLR §2001 at any stage of the action. *See, MacLeod v County of Nassau*, 75 A.D.3d 57, (2d Dep’t 2010).

III. ALTERNATIVELY, SUMMARY JUDGMENT MUST BE GRANTED DISMISSING ALL COUNTERCLAIMS

A. First Counterclaim: Abuse of Process

17. “The institution of a civil action by summons and complaint is not legally considered process capable of being abused.” *Curiano v. Suozzi*, 63 N.Y.2d 113, 116 (1984). The “gist” of the tort is the improper use of process *after* it is issued to obtain a collateral objective; a malicious motive in *bringing* an action is insufficient. *Id.* Calvagno identifies no regularly issued process that was improperly diverted after issuance. His claim rests entirely on the allegation that Plaintiffs acted maliciously in commencing this action and making complaints to police—neither of which qualifies as abuse of process. He also fails entirely to address the overwhelming evidence justifying this suit: decibel readings, police reports, neighbor complaints, photographs, and videos. *Liss v. Forte*, 96 A.D.3d 1592 (4th Dep’t 2012).

B. Second Counterclaim: Discrimination/Prima Facie Tort

18. Calvagno again fails to identify the specific tort alleged, rendering this counterclaim dismissible on pleading grounds alone. CPLR §3013; §3014. Discrimination is not an actionable tort under New York law. *Matter of Amorosi v. South Colonie Indep. Cent. Sch. Dist.*, 9 N.Y.3d 367, 372 (2007). The Human Rights Law provision he cites applies to those who provide housing accommodations, not to neighbor disputes. Even construed as a prima facie tort, Calvagno has neither pleaded nor proven special damages, a mandatory element—nor established that malice was the *sole* motivating factor. His own testimony established the parties had no negative interactions before this lawsuit; the nuisance evidence demonstrates Plaintiffs had legitimate, non-malicious grounds for suit. *Freihofer v. Hearst Corp.*, 65 N.Y.2d 135 (1985).

19. Moreover, Calvagno's invocation of the Human Rights Law fundamentally mischaracterizes the nature of Plaintiffs' claims. Plaintiffs' Complaint has nothing whatsoever to do with Calvagno's sexual orientation or lifestyle. Plaintiffs complain of three categories of conduct, each of which is objectively verifiable and each of which would be equally actionable regardless of who their neighbor was: (1) the daily operation of a high-performance vehicle producing excessive noise in violation of VTL §375(31)(a) and Village of Amityville Code §114-3, measured at over 75 dBa inside Plaintiffs' home; (2) the use of a residentially-zoned property as a commercial venue, including a catering hall and marina slip rental operation, in violation of Village of Amityville Code §183-43; and (3) the accumulation of trash and debris in violation of Village of Amityville Code §97-9, which attracted vermin requiring Plaintiffs to retain an exterminator. None of these complaints has any connection to Defendant's identity or personal life. The New York State Human Rights Law was enacted to protect individuals from discrimination in the provision of housing, employment, and public accommodations, not to shield a property owner from legitimate civil nuisance claims arising from his own unlawful conduct. To permit Calvagno to reframe straightforward code violations and quality-of-life nuisances as civil rights discrimination would render the nuisance cause of action a nullity whenever a defendant belongs to a protected class.

C. Third Counterclaim: Malicious Prosecution

20. This counterclaim is fatally premature. An essential element of malicious prosecution is favorable termination of the prior action. A malicious prosecution counterclaim interposed in the very action claimed to be malicious must be dismissed because the foundation of the right to sue for malicious prosecution does not yet exist. *See, Britt v. Legal Aid Soc.*, 95 N.Y.2d 443, 446 (2000); *Colon v. City of New York*, 60 N.Y.2d 78, 83 (1983).

21. Separately, Plaintiffs had overwhelming probable cause. Plaintiffs submitted decibel readings exceeding 75 dBa measured *inside their home*, meaning the exterior level at the source was substantially higher, along with police reports, neighbor complaints, photographs, and videos. Defense counsel's claim that "NYS approved decibel ranges" cap acceptable levels "between 76 and 90 decibels" misrepresents the law: VTL §375(31)(a) and Village of Amityville Code §114-3 prohibit "excessive or unusual noise" a qualitative standard with no fixed numerical ceiling. Moreover, Calvagno's repeated claim that no citation was ever issued is directly contradicted by independent witness Elizabeth Ranker, who submitted an affidavit stating police told her they "had already ticketed him a few times" ([NYSCEF#100](#)). The Court should consider Calvagno's failure to disclose these tickets when evaluating the sanctions request. *Pirro v. Bd. of Trustees*, 203 A.D.3d 1263 (3d Dep't 2022).

D. Fourth Counterclaim: Private Nuisance

22. A private nuisance requires a continuous invasion of rights a pattern of continuity or recurrence of objectionable conduct. *See, Aristides v. Foster*, 73 A.D.3d 1105, 1106 (2d Dep't 2010). Calvagno's own testimony establishes he suffered no interference with his use and enjoyment of his property ([Calvagno Tr.](#) at 160). His counterclaim rests on Mr. DeSousa speaking with two neighbors about a petition Calvagno never saw ([Calvagno Tr.](#) at 156) and which Calvagno himself admitted "may not have been a petition" at all. A single conversation with two neighbors does not approach the threshold of continuous, substantial interference required. *Bd. of Dirs. of Squire Green at Pawling Homeowners Ass'n v. Bell*, 89 A.D.3d 657, 659, 932 N.Y.S.2d 286 (2d Dep't 2011).

E. Fifth Counterclaim: Harassment, Menacing, and IIED

23. Calvagno concedes New York does not recognize common law causes of action for harassment or menacing, *Edelstein v. Farber*, 27 A.D.3d 202, 811 N.Y.S.2d 358 (1st Dep’t 2006), and does not contest the failure to establish assault. His entire response is limited to intentional infliction of emotional distress (“IIED”).
24. As a threshold matter, Calvagno fails to submit medical evidence of emotional distress. This failure is independently fatal. *Murphy v. Murphy*, 109 A.D.2d 965, 486 N.Y.S.2d 836 (3d Dep’t 1985); *Halio v. Lurie*, 15 A.D.2d 62, 222 N.Y.S.2d 759 (2d Dep’t 1961). On the merits, IIED requires conduct “so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency.” *Murphy v. Am. Home Prod. Corp.*, 58 N.Y.2d 293, 303 (1983). A handful of mutual verbal disputes, one unsuccessful driveway blocking, and one tailgating incident—conduct Calvagno himself reciprocated—does not approach this threshold. *Marilyn S. v. Indep. Grp. Home Living Program, Inc.*, 73 A.D.3d 895, 897, 904 N.Y.S.2d 70 (2d Dep’t 2010). Mr. DeSousa contacted police on only two occasions—May 26, 2021 and February 11, 2022—to report legitimate VTL violations. Calling police to report a suspected violation of law is not extreme or outrageous conduct.
25. As to Calvagno’s claim that Plaintiffs “relentlessly” called authorities, the evidence shows only two police reports by Mr. DeSousa. That is not relentless. As to the subpoena served on Westbury Jeep: that subpoena was issued in response to a letter Calvagno himself produced as evidence in this case ([NYSCEF#44](#)). When deposed, Westbury Jeep’s Service Director testified he “did not know” if the car was ever inspected as there was no record of the inspection ([NYSCEF#45](#) at 13-17), and the Shop Foreman confirmed they would not check exhausts, mufflers, or decibels during an inspection ([NYSCEF#91](#) at 22-23). The subpoena was issued to

test the evidentiary value of a document Calvagno himself submitted—it did not threaten his employment.

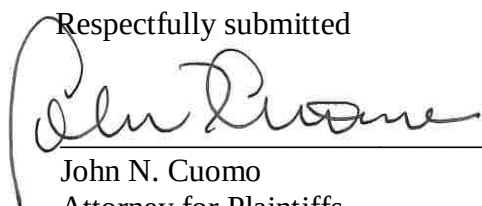
26. Finally, Calvagno’s own sworn affirmation provides an independent and dispositive basis for dismissal of all counterclaims as against Mrs. DeSousa. He states: “Not so much Diane. She’s never really done anything. She has always been respectful.” Every counterclaim is asserted against both Plaintiffs. Having sworn that Mrs. DeSousa “has always been respectful” and “never really done anything,” Calvagno cannot maintain any counterclaim against her as an individual or as Executor. Summary judgment dismissing all counterclaims as against Mrs. DeSousa is independently warranted on this ground alone. *Fousekéas v. Rondout Val. Cent. Sch. Dist.*, 10 A.D.3d 690, 782 N.Y.S.2d 84 (2d Dep’t 2004) (summary judgment appropriate where movant’s own admissions negate the claim).

CONCLUSION

WHEREFORE, for all the foregoing reasons, Plaintiffs respectfully request that this Court enter an Order: (1) dismissing Defendant Richard A. Calvagno II’s First through Fifth Counterclaims in their entirety and awarding attorney’s fees as a sanction for the conduct described herein; or alternatively, (2) granting summary judgment pursuant to CPLR §3212(b) in favor of Plaintiffs dismissing all Counterclaims in their entirety; and (3) granting such other and further relief as this Court may deem just, proper, and equitable.

Dated: Commack, New York
May 4, 2026

Respectfully submitted



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CERTIFICATION PURSUANT TO UNIFORM RULES 202.8-b

John N. Cuomo, an attorney duly admitted to practice law before the Courts of the State of New York, certifies that the foregoing Reply Affirmation was completed using a word processing system and that I have relied on that system's word count in preparing this certification. The total words, excluding those permitted to be excluded (caption, signature block), is 3202 words.

Dated: Commack, New York

May 4, 2026



John N. Cuomo